In 1983, in Sher Singh vs. State of Punjab, the Supreme Court repeated the same observations, and in the larger Constitutional Bench in Triveniben vs. State of Gujarat in 1989 to settle the law the Supreme Court again reiterated that a prolonged delay in execution would be unjust, unfair and unreasonable. The Supreme Court held that in the disposal of mercy petitions it has been universally recognized that the condemned person suffers a degree of mental torture even though there is no physical mistreatment. It held that if there was an inordinate delay in execution, the condemned prisoner would be entitled to move the court to examine whether it was just and fair to allow the sentence of death to be executed. The disclosure of the rejection of the mercy petition was, therefore, mandatory. In the case of Jagdish vs. State of Madhya Pradesh in 2012, the Supreme Court highlighted not only the agony of the convict by inordinate delay of execution but also the agony and trauma of his close relatives.

In 1994 the Privy Council adopted the observations of the Indian Supreme Court and stated in a moving part of the judgement that ‘there is an instinctive revulsion against the prospect of hanging a man after he has been held under sentence of death for many years. What gives rise to this instinctive revulsion? The answer can only be our humanity; we regard it as an inhuman act to keep a man facing the agony of execution over a long extended period of time . . . To execute these men now after holding them in custody for so many years would be inhuman punishment.’ The European Court on Human Rights in 1989 and the Canadian Supreme Court have also taken a similar view. In executing Afzal Guru, the government deliberately ignored the views of our Supreme Court and other courts in other jurisdictions.

Apart from the torment and agony suffered by the death row convict, it has been universally recognized that the agony is suffered also by his near and dear ones in the same manner by the delay. A leading textbook on death penalty states that ‘the trauma for families is specially evident when the date of the execution draws near. In recognition of this, it appears to be the common practice in most retentionist countries to allow relatives to visit the condemned person prior to execution, to inform them of the date of the execution, and to deliver them the body for burial.’

In Afzal Guru’s case, his family members were not informed of his imminent execution and were unable to meet him one last time before his execution. The government’s claim that it informed them by a speed post